

Tentative Rulings for July 28, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2501786	PENICK VS EISENHOWER MEDICAL CENTER	MOTION TO COMPEL RESPONSE TO SPECIAL INTERROGATORIES SET ONE BY ARLENE PENICK

Tentative Ruling: Granted in part.

Moot as to substantive motion, but granted as to sanctions.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Arlene Penick ("Plaintiff") slipped and fell at Defendant Eisenhower Medical Center ("Defendant") causing her personal injuries. On March 14, 2025, Plaintiff filed her complaint alleging two causes of action: 1) general negligence; and 2) premises liability.

Plaintiff moves to compel initial responses to special interrogatories, set one from Defendant, which were served on January 8, 2026. Plaintiff's counsel declares he gave extensions to April 15, 2026 to respond, but no verified responses were received by that date. Plaintiff also requests sanctions of \$2,565 (\$450 x 5.7 hours + \$60 filing fee).

In opposition, Defendant states its counsel requested an extension to May 6, 2026, but Plaintiff only provided until April 15, 2026. Defendant's counsel's office served unverified responses April 15, 2026, Plaintiff filed the motion May 5, 2026 and verified responses were served May 12, 2026. Defendant argues sanctions are not appropriate as counsel inadvertently forgot to follow up on her client's execution of the verification, but did so promptly after receiving the motion and served the verification upon receipt.

In reply, Plaintiff argues Defendant's late responses were so poor that they required a 29 page meet and confer letter and as such sanctions are appropriate.

Motion to Compel Response(s)

Code of Civil Procedure sections 2030.290(b) allows the propounding party to file a motion to compel responses to interrogatories if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a).)

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

Sanctions

As to sanctions, for interrogatories, section 2030.290(c) provides that "the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Defense counsel requested a continuance to May 6, Plaintiff's counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted. However, Plaintiff's request for \$2,565 is too much for this straightforward motion. Reduced to \$960 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502741	RAMIREZ VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY KEVIN RAMIREZ

Tentative Ruling: Granted.

Attorney fees and costs are granted in reduced, but reasonable amount each. Payable by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5

Plaintiff Kevin Ramirez filed this Song-Beverly action regarding a 2023 Chevy Silverado with various defects. The complaint, filed 4/11/25, asserts: (1) breach of the implied warranty of merchantability; (2) breach of express warranty; (3) failure to promptly repurchase product; (4) failure to commence reasonable repairs within a reasonable time and complete them within 30 days. On 12/4/25, Plaintiff filed a notice of settlement of the case.

Plaintiff moves for attorney fees of \$17,375 and costs of \$1,451.40. He points out that he received a settlement of \$91,0000 plus fees and costs. He contends the hourly rate (\$625) is reasonable and counsel spent 24.8 hours plus 3 hours to draft the reply and attend the hearing.

In opposition, Defendant contends that AB 1755 streamlined this case as it was resolved in 8 months, and the lodestar is excessive. There was little activity other than serving initial disclosures and engaging in mediation. Defendant challenges specific entries and contends that 11.4 hours is reasonable. Defendant also contends the hourly rate is excessive and a more reasonable rate is \$550. It also argues that the costs are excessive and challenges them.

In reply, Plaintiff argues that the hourly rate and hours spent are reasonable.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

First, based on the familiarity of this Court's experience with similar motions in this area of law and the facts of this case, the hourly rate of \$650.00 is excessive. The court will grant attorney fee of \$550.00 an hour.

Second, the hours seem inflated for a straightforward lemon law case. The court will reduce as follows:

- 1.2 hours drafting a standard lemon law complaint is excessive. A more reasonable amount is .5.
- 3.2 hours preparing initial disclosures is excessive. A more reasonable amount is 2.0 hours.
- There seems to be clerical/administrative work done by counsel. While the court recognizes that counsel is a solo practitioner, that does not allow him to bill for these tasks. The court declines to award the entries for 5/2/25 [.2]; 7/7/25 [.5]; 12/5/25 [.1], 1/9/26 [.1], for a reduction of .9 hours.

Thus, the court awards a total of 25 hours for a total of \$13,750.00.

Costs

As for costs, jury fees are reasonably incurred. Plaintiff concedes that the mediation covered two cases, and agrees to reduce the mediation fees by \$300. Thus, the court awards costs of \$1,151.40.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502826	PARKS VS FCA US LLC	PLAINTIFF'S MOTION TO COMPEL MEDIATION PURSUANT TO CCP 871.26

Tentative Ruling: No tentative. Hearing will be conducted on July 28, 2026 at 8:30 a.m. in Department PS2.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508325	GALLAGHER VS RV COUNTRY INC.	MOTION TO COMPEL PLAINTIFF LESLIE VAUGHN GALLAGHER FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE AND SPECIAL INTERROGATORIES, SET ONE BY FORREST RIVER INC.

Tentative Ruling: Granted.

No opposition filed.

Responding party is ordered to serve verified responses to Form Interrogatories, Set One, Nos. 1.1, 6.4, and 14.1. Responding party is further ordered to service verified responses to Special Interrogatories, Set One, Nos. 24, 30, 40, and 41 within 30 days of service of notice

Responding party is ordered to pay attorney's fees and costs to moving party in the amount of \$960.00 within 30 days of service of notice. \$3,200.00 per hour is excessive.

Prevailing party ordered to give notice pursuant to CCP §1019.5.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600522	TAYLOR VS PEREZ	DEMURRER ON 1ST AMENDED COMPLAINT OF TENNLEY TAYLOR BY OLGA M PEREZ

Tentative Ruling: Sustained in part.

Sustained without leave to amend as to 1st cause of action. Overruled as to 2nd and 3rd causes of action.

Moving Defendant to file their answer to operative 1st Amended Complaint within 20 days of this order becoming final.

Moving Defendant to provide notice pursuant to CCP 1019.5.

On February 5, 2026, Plaintiff filed a Verified Complaint to Quiet Title. By filing this Complaint, Plaintiff sought a judicial determination of ownership of a manufactured home

at issue due to conflicting and adverse claims arising from abandonment, outdated administrative registration records, and unrecorded transfers. On May 27, 2026, the Court sustained a demurrer to the Complaint, with leave to amend. (See Comprehensive minute order dated May 27, 2026.) The Court's prior ruling stated that the original quiet title pleading failed because Plaintiff did not plead her own title or a recognized basis for title. The ruling also recognized that Defendant's arguments concerning abandonment, lockout, ownership/ possession, damage, and issue/ claim preclusion involved factual and preclusion issues that could not be resolved on demurrer.

On June, 4, 2026, Plaintiff filed a First Amended Complaint for (1) Determination of Interests Incidental to Restitution (CCP § 760.020); (2) Equitable Lien/Unjust Enrichment; (3) Constructive Trust and Equitable Lien as Remedies to Prevent Unjust Enrichment Limited to Monetary Security. The FAC changed the case posture. It does not ask the Court to award Plaintiff possession or title for purposes of ownership. Instead, it seeks restitution equitable lien/unjust enrichment, and constructive trust/equitable lien as remedies to prevent unjust enrichment and secure limited monetary relief.

Defendant contends that (1) Plaintiffs claims for unjust enrichment, restitution, and equitable lien fail Plaintiff Was an unlawful occupant with no right to possess the property; (2) Plaintiff cannot invoke the good faith improver doctrine because she was not a good faith improver; (3) Plaintiff's Claims are Barred by Res Judicata and Collateral Estoppel Based on the Unlawful Detainer Judgment; (4) Plaintiff's 1st cause of action for determination of interests incidental to restitution fails to state a cause of action; (5) Plaintiffs Claims Are Barred by Unclean Hands; (6) Plaintiff Has Not and Cannot Allege Facts Showing Defendants Were Unjustly Enriched; (7) the First Amended Complaint is uncertain.

In Opposition, Plaintiff contends (1) The Demurrer Improperly Relies on Disputed Factual Accusations and Extrinsic Narratives; (2) Defendant Attacks Adverse Possession and Possession Theories That the FAC Does Not Assert; (3) Plaintiff Is Not Attempting to Evade the Unlawful Detainer Judgment; the FAC Seeks 8 Different Relief and the UD Appeal Remains Pending; (4) Ownership, Control, HCD Records, Hilda Raffull, and Antonio Rotella Are Factual Predicates to Restitution and Equitable Relief, Not a Disguised Quiet Title Claim; (5) The FAC Adequately Pleads Restitution/ Unjust Enrichment at the Pleading Stage; (6) The FAC Adequately Pleads an Equitable Lien/ Constructive Trust Remedy, or at Minimum Should Be Granted Leave to Clarify the Label; (7) Good Faith Is Pleaded and Cannot Be Negated on Demurrer by Defendant's Disputed Facts; (8) Unclean Hands Cannot Be Decided on Demurrer Based on Defendant's Factual Accusations; (9) CCP Section 760.020 Does Not Defeat the FAC Because Plaintiff No Longer Seeks Quiet Title; Alternatively, Leave to Clarify Should Be Granted; (10) the FAC is not uncertain.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts

which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Request for Judicial Notice (RJN)

With the Opposition, Plaintiff asks the Court to take judicial notice of the Court's ruling on the prior demurrer, to the Complaint. The request states that this ruling is attached as Ex. 1 but it is not. Since this ruling is on the register of actions, the Court will GRANT this request.

Plaintiff also asks the Court to take judicial notice of the existence and pendency of the unlawful detainer appeal, Riverside County Superior Court 2 Appellate Division Case No. APRI2600033, arising from the unlawful detainer matter referenced by Defendant in the demurrer. Plaintiff requests judicial notice of the existence and pendency of the appeal, not the truth of any disputed factual statements in that case. GRANTED

Plaintiff claims he is not alleging quiet title anymore.

Defendant accuses Plaintiff essentially of trying to allege a quiet title action again, even though the Court already sustained the prior demurrer to his quiet title claim. Defendant claims that the FAC is really trying to raise ownership/title interests again. Plaintiff, however, explains that Defendant cannot defeat a restitutionary claim at demurrer by accusing Plaintiff of destroying the very work Plaintiff alleges she paid contractors and others to perform. Whether any improvements remained, whether Defendant retained a benefit, whether later damage occurred, and who caused any later condition are factual disputes.

Defendant argues Plaintiff cannot establish adverse possession after approximately one year. However, that argument is directed at Plaintiffs original quiet-title-oriented complaint, not the operative FAC. Plaintiff does not rely on adverse possession as the basis for the FAC. Nor does Plaintiff seek possession of the manufactured home or title for purposes of ownership.

To the extent Defendant continues to argue that Plaintiff must plead title or adverse possession, that was the issue addressed by the Court's prior ruling on the original complaint. 5 Plaintiff amended to remove that theory. The operative pleading now asks whether Defendant may retain benefits from Plaintiffs alleged expenditures without restitution or equitable relief

1st Cause of Action - Determination of Interests Incidental to Restitution (CCP § 760.020)

Plaintiff purports to bring her First Cause of Action under CCP § 760.020, which she characterizes as "Determination of Interests Incidental to Restitution." However, section 760.020 is part of the quiet title statute and provides:

"In an action brought under this chapter, the court may ... determine any question arising in the action and necessary to a determination of the rights of the parties 19 or to a complete settlement of all questions of title."

CCP § 760.020 is a procedural provision that allows courts to resolve ancillary issues in quiet title actions. It does not create an independent cause of action for restitution or equitable lien. Defendant is right that Plaintiff cannot invoke section 760.020 to bootstrap a restitution claim into a quiet title framework, particularly after this Court sustained a demurrer to her original quiet title complaint. SUSTAINED

2ND and 3rd Causes of Action - Equitable Lien/Unjust Enrichment and Equitable Lien

Defendant claims that despite Plaintiffs protestations that she "does not seek adjudication of title for purposes of ownership," her allegations make clear that she is challenging Defendant's ownership interest and asserting her own competing interest. Defendant contends that Plaintiff alleges an "equitable interest," "equitable lien," and "restitutionary interest" in the property based on her unauthorized expenditures. According to Defendant, these allegations are functionally identical to a quiet title claim. Plaintiff seeks a judicial determination that she has a legally enforceable interest in Defendant's property that is superior to Defendant's ownership interest to the extent of \$28,340.00. This is a challenge to title, according to Defendant, regardless of the label Plaintiff applies.

Plaintiff, on the other hand, contends that claims for quiet title and adverse possession have been removed from the pleading since the Court ruled on the prior demurrer. The FAC does not ask the Court to award Plaintiff possession or title for purposes of ownership. Instead, it seeks restitution, equitable lien/unjust enrichment, and constructive trust/equitable lien as remedies to prevent unjust enrichment and secure limited monetary relief. Based on what has been presented, the Court must overrule the demurrer to the second and third causes of action for pleading purposes.

Matters outside scope of demurrer

Defendant once again tries to take this matter outside the scope of demurrer by bringing in extrinsic matter in a seeming attempt to litigate this action at the pleading stage. The court will not address these numerous allegations.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2600896	ROSE VS SPENCER FOOD SERVICES, INC.	DEMURRER ON CROSS- COMPLAINT OF SPENCER FOOD SERVICES, INC. BY DENISE BARRIER

Tentative Ruling: Sustained.

Cross Complainant Spencer granted leave, one additional time, to file an Amended Cross Complaint within 10 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is a personal injury action initiated on January 21, 2026 by Plaintiff Jillian M. Rose against Defendant Spencer Food Services, Inc. (or “Spencer”). On February 10, 2024, Plaintiff was struck by a dangerous condition while she was on Defendants’ premises sustaining injuries. Plaintiff alleges Defendants negligently owned, maintained, managed, and operated the premises. Defendants’ negligence caused Plaintiff’s injuries. The Complaint asserts causes of action for: (1) General Negligence and (2) Premises Liability.

Cross Complaint. Spencer filed a Cross Complaint against Cross-Defendant Denis Barrier (or “Barrier”) on April 27, 2026 for (1) Indemnification; (2) Declaratory Relief; and (3) Apportionment of Fault.

Motion. Barrier now demurs to the Cross Complaint for failure to state facts sufficient and is uncertain. Barrier points out the entire Cross Complaint fails to allege any ultimate facts regarding any wrongful act, omission, or breach of duty, relying on bare legal conclusions and speculation.

In opposition, Spencer argues the demurrer must be denied for failure to provide the required notice under Code of Civil Procedure section 1005. Otherwise, Spencer maintains the Cross Complaint contains sufficient facts to support the causes of action asserted.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Timeliness of Demurrer

Code of Civil Procedure section 1005, subdivision (b), requires all moving and supporting papers to be served and filed at least 16 court days before hearing. If the notice was served via email, as it was here, the required 16-day period of notice before hearing shall be increased by two calendar days. (Code Civ. Proc., §§ 1005, subd. (b), 1013.) Thus, Barrier was required to file the demurrer on July 2, 2026. However, Spencer timely filed an opposition on the merits and therefore waived any defect in the notice. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 696-697.)

1st Cause of Action - Indemnification

Indemnity means “the obligation resting on one party to make good a loss or damage another party has incurred.” (*Rossmore Sanitation, Inc. v. Pylon, Inc.* 91975) 13 Cal.3d 622, 628.) “An indemnitor is the party who is obligated to pay another.” (*Maryland Casualty Co. v. Bailey & Sons, Inc.* (1995) 35 Cal.App.4th 856, 864.) “An indemnitee is the party who is entitled to receive the payment from the indemnitor.” (*Id.*) “An indemnity obligation arises from two general sources.” (*Id.*) First, it may arise from “express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances.” (*E.L. White, Inc. v. City of Huntington Beach* (1978) 21 Cal.3d 497, 506 (“*E.L. White*”).) Here, there is no allegation of a contract in the Cross Complaint.

Second, indemnity may also arise based on equitable considerations. (*E.L. White, supra*, 21 Cal.3d at 507.) “Unlike contractual indemnity which looks to the parties’ intent, equitable indemnification focuses on principles of fairness and justice and is designed to apportion loss among tortfeasors in proportion to their relative culpability[.]” (*Maryland Casualty, supra*, 35 Cal.App.4th at 864.) A condition of equitable indemnity is that there must be some basis for tort liability against the proposed indemnitor, usually involving breach of a duty owed to the underlying plaintiff. (*Stonegate Homeowners Ass’n. v. Staben* (2006) 144 Cal.App.4th 740, 751.) “The doctrine applies only among defendants who are jointly and severally liable to the plaintiff.” (*BFBG Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 852.)

“Equitable indemnity ‘applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party.’” (*United Services Auto. Ass’n v. Alaska Ins. Co.* (2001) 94 Cal.App.4th 638, 644-645.) “Equitable indemnity principles govern the allocation of loss or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be borne by each joint tortfeasor ‘in direct proportion to [its] respective fault.’” (*Expressions a Rancho Niguel Assn. v. Ahmanson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 597-598.)

Here, the Cross Complaint alleges Barrier “was present at the subject premises at the time of the incident and was directly involved in the subject incident.” (XComplt., ¶2.) Spencer alleges it is not liable for events described in Plaintiff’s Complaint and that Barrier

is liable. (*Id.* at ¶5.) However, the Cross-Complaint fails to allege the basis for tort liability against Barrier involving a duty owed to Plaintiff. (*Stonegate Homeowners Ass’n, supra*, 144 Cal.App.4th at 751.) It also fails to allege that Barrier and Spencer are jointly or severally liable to Plaintiff. (*BFBG Architects Planners, Inc., supra*, 119 Cal.App.4th at 852.) SUSTAINED

2nd Cause of Action - Declaratory Relief

Declaratory relief is authorized pursuant to Code of Civil Procedure sections 1060-1062.5. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (*Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435, 443.) An action for declaratory relief is authorized only when an actual controversy exists. (Code Civ. Proc., § 1060.) Declaratory relief has two elements a party must satisfy: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party’s] rights or obligations.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.) “[T]he remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (*Id.*) “It is the general rule that, if a complaint shows the existence of a present controversy between the parties of the nature contemplated by section 1060 of the Code of Civil Procedure, it is improper to sustain a general demurrer on a theory that assumes any declaration would necessarily be unfavorable to plaintiff.” (*Safeway Stores, Inc. v. Royal Indem. Co.* (1971) 21 Cal.App.3d 44, 47.)

However, “[w]hile section 1060’s language ‘appears to allow for an extremely broad scope of an action for declaratory relief’...In the context of a demurrer, the court will evaluate ‘whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties...Section 1060 must be read together with section 1061.’” (*Cummins Corporation v. United States Fidelity & Guaranty Company* (2016) 246 Cal.App.4th 484, 489.) Code of Civil Procedure section 1061 provides that “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.”

Here, the Cross Complaint alleges that an actual controversy exists between the parties concerning their respective rights and duties as to liability for damages suffered by the Plaintiff. (XComplt., ¶8.) Spencer alleges it desires a judicial determination of the respective rights and the percentage of fault of each party. (*Id.* at ¶9.) This is a proper subject for declaratory relief. (*Id.* at ¶¶45-46.) However, because the Cross-Complaint fails to allege the basis for tort liability against Barrier involving a duty owed to Plaintiff, as discussed above, declaratory relief is not proper at this time. SUSTAINED

3rd Cause of Action - Apportionment of Fault

Barrier states this claim fails as a matter of law because apportionment of fault is an affirmative defense or evidentiary mechanism under Proposition 51 (Civil Code § 1431.2) and is not a standalone, independent cause of action under California law.

Spencer maintains this is a cause of action, citing *American Motorcycle Ass’n v. Superior Court* (1978) 20 Cal.3d 578 and *Evangelatos v. Superior Court* (1988) 44 Cal.3d 1188,

1197-1198. However, neither of these cases address whether apportionment of fault is an independent cause of action.

Civil Code section 1431.2 states, “In any action for personal injury, property damage, or wrongful death, based upon principles of comparative fault, the liability of each defendant for non-economic damages shall be several only and shall not be joint. Each defendant shall be liable only for the amount of non-economic damages allocated to that defendant in direct proportion to that defendant’s percentage of fault, and a separate judgment shall be rendered against that defendant for that amount.” (Civ. Code, § 1431.2, subd. (a).)

The comparative fault doctrine “is a flexible, commonsense concept, under which a jury properly may consider and evaluate the relative responsibility of various parties for an injury (whether their responsibility for the injury rests on negligence, strict, liability, or other theories of responsibility), in order to arrive at an ‘equitable apportionment or allocation of loss.’” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 314.) It apportions liability in direct proportion to fault in all cases. (*Li v. Yellow Cab Co.* (1975) 13 Cal.3d 804, 827.)

By its plain language, apportionment of fault is a defense, not an independent cause of action. SUSTAINED

As to the special demurrer, the Cross Complaint fails to allege the basis for tort liability against Barrier involving a duty owed to Plaintiff. It is devoid of facts where Barrier cannot reasonably determine what issues must be admitted or denied. SUSTAINED.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2602834	CAMERON VS BISHOP	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE) BY CHARLES BISHOP, KATHLEEN NEGRETE, JERRY LUGO, ZEKE WHEELER, TABITHA BLACK

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This matter concerns a homeowners association dispute. Plaintiff Steven Cameron is a homeowner in Bermuda Dunes Country Club, a common interest development governed by Defendant Bermuda Dunes Community Association (“Association”). (Complaint ¶11.) Defendant Kathleen Negrete is the President of the Board of Directors of the Association. (Comp. ¶3.) Defendant Jerry Lugo is the Vice President of the Board of Directors of the Association. (¶4.) Defendant Charles Bishop is the Secretary of the Board of Directors. (¶5.) Defendant Zeke Wheeler is a director on the Board of Directors. (¶6.) Defendant Tabitha Black is also a director on the Board of Directors. (¶7.)

Miguel and Maria Teresa Gonzalez own the home located next to Plaintiff’s home in the community. (Comp. ¶18.) Plaintiff alleges the Gonzalez home was renovated and while the homeowners obtained approval for certain construction plans on the property, the construction as performed materially and repeatedly deviated from the approved plans. (¶20.) Plaintiff contends the deviations included an unapproved garage door, gates, and

altered elevations. (¶21.) Plaintiff alleges the deviations are inconsistent with the community's architectural standards. (¶21.) Plaintiff further alleges the construction project has remained incomplete for more than two years and has posed various safety risks to Plaintiff and other residents. (¶24.)

Plaintiff repeatedly complained to the Association about the construction and hazardous conditions of the property. (Comp. ¶25.) Plaintiff alleges Defendants failed to take remedial action to address Plaintiff's complaints. (¶¶27-28.) Plaintiff alleges he has suffered loss of quiet enjoyment, exposure to hazardous conditions, and has been forced to incur attorney fees and costs to protect his property interests as a direct result of Defendants' acts and omissions. (¶40.)

The Complaint alleges: (1) breach of CC&Rs and governing documents; (2) breach of fiduciary duty; (3) negligence; (4) tort of another; (5) violation of Civil Code §5200 et seq.; (6) violation of Civil Code §5935; and (7) declaratory relief. The Complaint names the individual directors, the Association, Desert Resort Management, and Vintage Real Estate Group as defendants.

Defendants Negrete, Lugo, Bishop, Wheeler, and Black ("the director defendants") now bring the instant special motion to strike the first, second, third, fourth, and seventh causes of action. The director defendants argue Plaintiff improperly brings claims against them for their voting and decision-making regarding issues of public concern. Defendants argue they are immune under the governing documents and Business Judgment Rule. Defendants further argue Plaintiff failed to comply with Civil Code §5930 and CCP §425.15.

Plaintiff opposes the motion. Plaintiff argues he does not challenge any statement made, vote case, or writing authored by any of the director defendants. Instead, Plaintiff is challenging their sustained failure to act which is permissible. Plaintiff contends the gravamen of the instant action is the director defendants' failure to enforce the CC&Rs against ongoing architectural noncompliance and to abate a resulting physical hazard. Plaintiff argues the motion fails under the first prong as Plaintiff's claims do not fall within the class of suits subject to an anti-SLAPP motion. Should the court reach the second prong of the analysis, Plaintiff argues he can establish a probability that he will prevail on his claims.

Anti-SLAPP

As a general rule, when a cause of action arises out of the furtherance of a defendant's right of petition or free speech in connection with a public issue, it is subject to a special motion to strike. (CCP § 425.16(b)(1).) An "act in furtherance of a person's right of petition or free speech" ... includes ... any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or ... any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (CCP § 425.16(e)(3)-(4).) Importantly, however, "[t]he anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity." (*Baral v. Schnitt* (2016) 1 Cal.5th 376,

384 [emphasis in the original].) Thus, courts use a two-step evaluation to determine whether an action is a SLAPP suit subject to a special motion to strike: (1) the Plaintiff's claim must arise out of the Defendant's protected speech or petitioning; and (2) the Plaintiff's claim lacks even minimal merit. (*Navellier v. Sletten*, (2009) 29 Cal.4th 82, 88-89; see also *Ericsson GE Mobile Communications, Inc. v. C.S.I. Telecommunications Engineers* (1996) 49 Cal.App.4th 1591, 1601, 1603.)

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Superior Court* (1994) 17 Cal.App.4th 809, 819.) To meet the initial burden, a defendant need only show that the complaint "*arises from*" defendant's exercise of free speech or petition rights as defined in §425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) The act which forms the basis for the cause of action must itself have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-78.)

Once the defendant makes such a prima facie showing, the burden shifts to the plaintiff to establish a "probability" that it will prevail on whatever claims are asserted against the moving defendant. (CCP § 425.16(b).) The plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment. (*Navellier, supra*, 29 Cal.4th at 89, 93.) The court does not weigh the credibility or comparative strength of the evidence, but instead accepts as true all evidence favorable to the plaintiff. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.App.4th 260, 291; *Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699-700.)

"Arising From" Prong

"Arising from" means that the defendant's act underlying the plaintiff's causes of action must *itself* have been an act in furtherance of the right of petition or free speech. (*City of Cotati, supra*, 29 Cal.4th at 78.) In other words, "the critical consideration is whether the cause of action is *based on* the defendant's protected free speech or petitioning activity." (*Navellier, supra*, 29 Cal.4th at 89.) Whether the anti-SLAPP statute applies is determined by the "principal thrust or gravamen" of the plaintiff's claims; it cannot be invoked where the allegations of protected activity are only *incidental* to a cause of action based on nonprotected activity. (*Martinez v. Metabolife Int'l, Inc.* (2003) 113 Cal.App.4th 181, 187.) "If the core injury-causing conduct on which plaintiff's claim is premised does not rest on protected speech, collateral or incidental allusions to protected activity will not trigger application of the anti-SLAPP statute." (*Trilogy at Glen Ivy Maintenance Assn. v. Shea Homes, Inc.* (2015) 235 Cal.App.4th 361, 368 [citing *Martinez, supra*, 113 Cal.App.4th at 189].) "To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the *allegedly wrongful and injury-producing conduct*, not the damage which flows from said conduct." (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387 [italics in original]; accord *Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 121.)

The first issue the court must address is whether the director defendants' actions (or inactions) underlying Plaintiff's claims were themselves actions in furtherance of the right

of petition or free speech. The court must identify the allegedly wrongful and injury-producing conduct. If that conduct rests on free speech, the first prong has been satisfied and the court can move on to the next part of the analysis. If, however, the complained-of conduct does not rest on free speech, the “arising from” prong has not been met and the instant motion must be denied.

Important to the court’s analysis of this motion is the following from the California Supreme Court: “a claim may be struck [via an Anti-SLAPP motion] only if the speech or petitioning activity *itself* is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 (emphasis in original).) In *Park*, a university professor sued the Board of Trustees for discrimination after he was denied tenure in favor of non-minority coworkers. The Supreme Court, in reviewing an opinion from a divided Court of Appeal, noted the elements of Park’s claim depended on the denial of his tenure and whether the motive for denying his tenure was impermissible. Park’s claim did not rest on the grievance proceeding, any statements, or specific evaluations of him in the tenure process. The court noted that even though the ultimate tenure decision may have been communicated orally or in writing, those communications did “not convert Park’s suit to one arising from such speech.” (Id. at 1068.)

Defendants rely on *Lee v. Silveira* (2016) 6 Cal.App.5th 527 (“*Lee*”). In that case, three board members of a homeowners association sued six other board members and the association’s manager, but not the association itself. (Id. at 530.) At a board meeting, the directors discussed the renewal of a financial management contract. Plaintiffs requested the board seek additional bids for the management contract. Defendants believed the board should renew the contract for another year. Defendant Silveira made a motion to approve the management contract, which was seconded and ultimately passed. Plaintiffs voted against renewal. (Id. at 533.)

Plaintiffs’ complaint alleged the director defendants failed to follow proper bid procedures when they voted to renew the contract. It further alleged defendants adopted policies in violation of plaintiffs’ rights to carry out their respective responsibilities and duties as directors. (Id. at 534.) Plaintiffs also alleged the board allowed a roofing project to escalate significantly in cost and Plaintiffs specifically challenged the board’s vote concerning the roofing project. (Id. at 535.) The Complaint alleged one claim for declaratory relief but sought declaratory relief on nine (9) separate matters. (Id. at 537.) Director defendants brought a special motion to strike which the trial court denied. (Ibid.)

In reversing the trial court’s decision, the Court of Appeal found the board meetings in which the director defendants allegedly engaged in wrongful conduct constituted a public forum under the anti-SLAPP statute. (Id. at 540.) The Court further found it was “clear from the substance of plaintiffs’ declaratory relief claim that director defendants’ acts in voting were not ‘merely incidental’ to the allegations of ‘wrongful conduct’ asserted against” the defendants. (Id. at 543.) Rather, Plaintiffs alleged the defendants engaged in wrongful conduct based on *how* they voted in board meetings on “public issues” affecting association members. (Ibid.) The Court found the director defendants’ voting at board meetings were protected under the anti-SLAPP statute as acts in furtherance of their right to free speech made in connection with a “public issue.” (Id. at 545.)

In *Schwarzburd v. Kensington Police Protection & Community Services District Board* (2014) 225 Cal.App.4th 1345 (“*Schwarzburd*”), three individual board members were named as respondents in a writ petition brought by two other board members challenging the salary and bonus awarded to a police chief. (Id. at 1348-1349.) The court noted the individual board members who voted in favor of the salary increase and bonus were protected by the anti-SLAPP statute because they “were not sued simply because they voted but based on *how* they voted and expressed themselves at the [b]oard meeting.” (Id. at 1355.)

The first cause of action for breach of the CC&Rs and governing documents alleges the Directors Defendants owed Plaintiff an affirmative duty to enforce compliance with the governing documents of the HOA. (Comp. ¶45.) Plaintiff asserts he repeatedly notified Defendants of violations of the governing documents from the Gonzalez construction project. (¶¶47-48.) Despite actual knowledge of the violations, Plaintiff alleges Defendants failed to enforce the governing documents, failed to require correction of the unauthorized construction, and failed to take any meaningful enforcement action. (¶49.)

The second cause of action for breach of fiduciary duty alleges the Director Defendants owed Plaintiff fiduciary duties, including the duty to enforce the governing documents. (¶55.) Plaintiff alleges Defendants breached their fiduciary duties by “failing and refusing to enforce the CC&Rs and architectural standards against Homeowners, despite repeated notice of ongoing and obvious violations.” (¶57.) Plaintiff further alleges Defendants breached their duty by failing to investigate known violations and allowing unauthorized construction and hazardous conditions to persist for more than two years. (¶58.) The Complaint alleges the Director Defendants “breached their fiduciary duties by failing to exercise reasonable oversight over the HOA’s enforcement obligations and by acquiescing in the HOA’s refusal to enforce the governing documents.” (¶60.) Plaintiff’s claim is based on the Director Defendants’ collective failure to act and enforce the governing documents.

The third cause of action for negligence alleges the Director Defendants owed Plaintiff, as a member of the HOA, a duty to enforce the governing documents. (Comp. ¶65.) Defendants are alleged to have breached this duty by failing to enforce architectural standards and allowing the unauthorized construction and hazardous conditions to persist. (Comp. ¶67.)

The fourth cause of action for tort of another rests on the same premise – Defendants’ failure to act and enforce the governing documents meant Plaintiff had to obtain legal counsel and incur attorney fees and costs in order to enforce the governing documents and protect his rights and property. (Comp. ¶¶71-72.)

Finally, Plaintiff’s seventh cause of action for declaratory relief is premised on the same allegations already discussed. (Comp. ¶¶100-102.)

In sum, Plaintiff seeks to hold the individual directors accountable for failing to enforce the governing documents and act on Plaintiff’s many complaints that the governing documents were being violated. Plaintiff is not challenging the director defendants’ actions as a result of *how* they voted on subject matters pending before the board, like in *Schwarzburd* or *Lee*. Rather, Plaintiff’s claims are rooted in the allegation that the director

defendants failed to enforce the governing documents and breached various duties owed to Plaintiff and other homeowners. In align with *Park*, the fact that Defendants' alleged breach of those duties may be evidenced by oral or written communications does not transform Plaintiff's claims into claims arising from Defendants' protected speech.

Defendants note the Board addressed Plaintiff's concerns at the October 22, 2024, board meeting. (Negrete Decl. ¶12.) The Board decided to "continue to monitor the progress" and ultimately the Board approved the neighboring homeowners' construction plan. (Negrete Decl. ¶¶12-13.) Defendants contend Plaintiff is challenging their decision at this meeting. Under the authorities discussed above, Defendants argue this makes their conduct protected by the anti-SLAPP statute. Plaintiff, however, argues his claims "rest on the two year continuum of inaction that followed the October 2024 Meeting and continued independent of it." (Opp. p.8:26-27.) Plaintiff argues he is not challenging the specific way the Board voted at the October 2024 meeting. Instead, Plaintiff is again challenging the Board's failure to monitor the construction and enforce the governing documents in the years that followed that decision. Plaintiff's explanation is more in line with the allegations in the Complaint and the evidence presented by the parties in support of and in opposition to the instant motion. For this reason, Defendants have not met their initial burden to demonstrate the complained-of conduct rests on free speech.

Since Defendants did not meet their initial burden on the first prong of the analysis, the court need not consider the remaining arguments concerning whether Plaintiff can show a probability of prevailing on the merits of his claims.